

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                               |                           |                                                        |                                               |                                 |
|---------------------------------------------------|-----------------------------------------------|---------------------------|--------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Ella Mintz                       | Team:<br>Squad #01                            | CCRB Case #:<br>201709153 | <input checked="" type="checkbox"/> Force              | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                   |                                               |                           | <input checked="" type="checkbox"/> Abuse              | <input type="checkbox"/> O.L.                 | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Friday, 09/22/2017 11:00 AM   | Location of Incident:<br>Inside of § 87(2)(b) | 18 Mo. SOL<br>3/22/2019   | Precinct:<br>25                                        |                                               |                                 |
| Date/Time CV Reported<br>Mon, 11/06/2017 10:11 AM | CV Reported At:<br>CCRB                       | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Mon, 11/06/2017 10:11 AM |                                               |                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Witness(es) | Home Address |
|-------------|--------------|
| § 87(2)(b)  | § 87(2)(b)   |
| § 87(2)(b)  | § 87(2)(b)   |

| Subject Officer(s)     | Shield | TaxID  | Command |
|------------------------|--------|--------|---------|
| 1. POM Matthew Medina  | 18249  | 956916 | 025 PCT |
| 2. SGT Joel Sanchez    | 4491   | 947949 | 025 PCT |
| 3. POM Blaise Smeraldi | 17637  | 962111 | 025 PCT |
| 4. POF Yihong Feng     | 19238  | 959430 | 025 PCT |
| 5. POF Ayoela Charles  | 19706  | 958395 | 025 PCT |

| Witness Officer(s)    | Shield No | Tax No | Cmd Name |
|-----------------------|-----------|--------|----------|
| 1. POM Dinell Sinanan | 17588     | 962105 | 025 PCT  |

| Officer(s)              | Allegation                                                                        | Investigator Recommendation          |
|-------------------------|-----------------------------------------------------------------------------------|--------------------------------------|
| A . POM Matthew Medina  | Force: Police Officer Matthew Medina pointed his gun at § 87(2)(b)                | A . Unfounded                        |
| B . POM Matthew Medina  | Abuse: Police Officer Matthew Medina threatened § 87(2)(b) with the use of force. | B . Substantiated                    |
| C . POM Matthew Medina  | Abuse: Police Officer Matthew Medina threatened § 87(2)(b) with the use of force. | C . Substantiated                    |
| D . POM Matthew Medina  | Abuse: Police Officer Matthew Medina refused to provide his name to § 87(2)(b)    | D . Unsubstantiated                  |
| E . POF Yihong Feng     | Abuse: Police Officer Yihong Feng refused to provide her name to § 87(2)(b)       | E . Unsubstantiated                  |
| F . POF Ayoela Charles  | Abuse: Police Officer Ayoela Charles refused to provide her name to § 87(2)(b)    | F . Unsubstantiated                  |
| G . POM Blaise Smeraldi | Abuse: Police Officer Blaise Smeraldi refused to provide his name to § 87(2)(b)   | G . Miscellaneous - Subject Resigned |
| H . SGT Joel Sanchez    | Abuse: Sergeant Joel Sanchez forcibly removed § 87(2)(b) to the hospital.         | H . Exonerated                       |
| I . POM Matthew Medina  | Discourtesy: Police Officer Matthew Medina acted discourteously toward § 87(2)(b) | I . Unsubstantiated                  |

### Case Summary

On November 6, 2017, § 87(2)(b) filed this complaint with the CCRB over the phone.

On September 22, 2017 at approximately 11:00AM, § 87(2)(b) was § 87(2)(b) at the § 87(2)(b), located at § 87(2)(b) in New York, when he began feeling depressed. He asked § 87(2)(b) staff members, § 87(2)(b) and § 87(2)(b) for an ambulance to take him to the hospital § 87(2)(b). Police Officers Matthew Medina, Blaise Smeraldi, Yihong Feng, and Ayoela Charles, all of the 25<sup>th</sup> Precinct, responded to the scene. PO Medina allegedly pointed his gun at § 87(2)(b) (**Allegation A: Force: Unfounded**). PO Medina drew his Taser from his belt and told § 87(2)(b) that he would be Tased (**Allegations B and C: Abuse of Authority: Substantiated**). § 87(2)(b) allegedly asked all of the officers for their names, which they allegedly refused to provide (**Allegations D, E, F: Abuse of Authority: Unsubstantiated**) (**Allegation G: Abuse of Authority: Miscellaneous-Subject Resigned**). Sergeant Joel Sanchez and Police Officer Dinell Sinanan, also of the 25<sup>th</sup> Precinct, responded to the scene and Sgt. Sanchez authorized the forcible removal of § 87(2)(b) to § 87(2)(b) (**Allegation H: Abuse of Authority: Exonerated**). While walking to the ambulance, PO Medina allegedly stuck his middle finger up at § 87(2)(b) (**Allegation I: Discourtesy: Unsubstantiated**).

§ 87(2)(b) was not summonsed or arrested as a result of this incident. There is no video footage available of this incident.

### Findings and Recommendations

**Allegation A-Force: Police Officer Matthew Medina pointed his gun at § 87(2)(b)**

**Allegation B- Abuse of Authority: Police Officer Matthew Medina threatened § 87(2)(b) with the use of force.**

**Allegation C- Abuse of Authority: Police Officer Matthew Medina threatened § 87(2)(b) with the use of force.**

§ 87(2)(b) testified that he told § 87(2)(b) that § 87(2)(b) but that he never expressed any intention of hurting himself or hurting others (Board Review 01). § 87(2)(b) and § 87(2)(b) escorted § 87(2)(b) to a small conference room to wait for the ambulance. Approximately five minutes later, PO Medina, PO Smeraldi, PO Feng, and PO Charles rushed into the room. § 87(2)(b) stood up from his chair as he was surprised to see the police officers. PO Medina immediately ran over to § 87(2)(b) and put the barrel of his black gun on § 87(2)(b)'s chest. Neither § 87(2)(b) nor any of the officers said anything prior to PO Medina pointing the gun at § 87(2)(b). PO Medina said, "I'm gonna shoot him!" PO Smeraldi said, "Don't shoot! Don't shoot!" § 87(2)(b) was trying to get PO Medina away from his chest by pushing him away with his left hand. PO Smeraldi, PO Feng, and PO Charles grabbed § 87(2)(b)'s arms and tried to bring them behind his back. § 87(2)(b) pushed PO Medina for approximately thirty seconds. § 87(2)(b) told the officers, "I don't know what I did wrong but if that guy (referring to PO Medina) goes to the other side of the room, I'll cooperate." PO Smeraldi told PO Medina to go; PO Medina removed the gun from § 87(2)(b)'s chest and went to the other side of the room. § 87(2)(b) estimated that PO Medina had his gun pointed at him for approximately thirty seconds. PO Smeraldi, PO Feng, and PO Charles then placed § 87(2)(b) against a wall and handcuffed him.

All the other involved parties denied that PO Medina ever pointed a gun at § 87(2)(b) or threatened to “shoot” him.

§ 87(2)(b), § 87(2)(b), and § 87(2)(b) § 87(2)(b), both testified that § 87(2)(b) § 87(2)(b) (Board Reviews 02, 03). Neither § 87(2)(b) nor § 87(2)(b) told § 87(2)(b) that there was going to be police present. When the police officers arrived to the scene, § 87(2)(b) stood up and said something to the effect of, “I don’t want to be here. I’m leaving.” PO Medina told § 87(2)(b) that he could not leave. § 87(2)(b) then made a step to leave the room. The officers then placed § 87(2)(b) against a wall and tried to bring his arms behind his back. § 87(2)(b) never tried to push any officer. During the struggle, a male officer told § 87(2)(b) “If you don’t stop, I’m gonna Tase you.” Neither § 87(2)(b) nor § 87(2)(b) ever saw an officer take their Taser out.

All the officers testified that when they received this call, it was for § 87(2)(b) at the location. In his 911 call, § 87(2)(b) stated that § 87(2)(b) was § 87(2)(b) and that he was nonviolent and did not have any weapons; this information was conveyed in the radio message communications associated with this incident (Board Reviews 05, 06).

PO Medina testified he and PO Smeraldi were the first officers on scene. They spoke with a doctor upon arrival who led them to § 87(2)(b). § 87(2)(b) seemed upset by the police presence (Board Review 07). PO Medina explained that they needed to take him to the hospital. § 87(2)(b) became upset, stated he was not going to go, and started cursing. § 87(2)(b) tried to walk out of the door but PO Medina blocked his path. § 87(2)(b) then reached out and struck PO Medina’s face, which caused PO Medina to jerk backwards. PO Medina testified that after § 87(2)(b) struck him, § 87(2)(b) grabbed his waist and they both fell down to the ground, with PO Medina landing on top of § 87(2)(b). PO Smeraldi grabbed one of § 87(2)(b)’s arms and tried to handcuff him. PO Feng and PO Charles came over to the ground and assisted with trying to handcuff § 87(2)(b). PO Medina could not recall if they were ever against a wall at any point. PO Medina and PO Smeraldi issued multiple instructions to § 87(2)(b) to put his hands behind his back. § 87(2)(b) resisted the officers by refusing to provide his hands to the officers. § 87(2)(b) had his hands underneath his stomach and was trying to push the officers but PO Medina could not recall if § 87(2)(b) was able to make physical contact with any of the officers when he was trying to push them. § 87(2)(b) also resisted by moving his feet as if he were trying to stand up. After struggling with § 87(2)(b) for approximately a minute, PO Medina removed his Taser from his holster and held it by his side. PO Medina pulled out his Taser because § 87(2)(b) was physically resisting the officers. PO Medina told § 87(2)(b) that he would be Tased if he did not comply. § 87(2)(b) reacted to this by raising his voice and cursing. PO Medina could not recall what § 87(2)(b) said. PO Medina never pointed his Taser at § 87(2)(b). PO Medina then put his Taser back in his holster; he had it drawn for “seconds”. PO Medina did not utilize his Taser against § 87(2)(b) because the officers were on top of each other. Nobody told PO Medina not to use his Taser. PO Medina described his Taser as yellow with a black tip.

PO Smeraldi, who was interviewed the same day as PO Medina, similarly testified that he and PO Medina first spoke with a doctor at the facility. He also stated that § 87(2)(b) pushed PO

Medina when trying to leave the room (Board Review 08). PO Smeraldi could not tell if § 87(2)(b) used an open or closed fist when pushing § 87(2)(b) and that he could not tell where § 87(2)(b) pushed PO Medina and only recalled that it caused PO Medina's head to jerk backwards. PO Medina then grabbed § 87(2)(b)'s waist and took him to the floor. PO Smeraldi testified that while the officers were trying to handcuff § 87(2)(b) § 87(2)(b) did not attempt to push any officer. PO Smeraldi successfully put handcuffs on § 87(2)(b) after approximately two minutes. PO Smeraldi did not see PO Medina pull out his Taser but heard PO Medina tell § 87(2)(b) that he was going to Tase him if he did not comply. PO Smeraldi did not recall how long the officers had been struggling with § 87(2)(b) prior to PO Medina threatening to use his Taser against him. PO Smeraldi told PO Medina "Don't Tase him" because there were four officers on the ground with § 87(2)(b) and it would not be a good tactical decision to Tase him at that time.

PO Feng testified that § 87(2)(b) attempted to leave the room but she blocked § 87(2)(b) by standing in the doorway (Board Review 09). § 87(2)(b) started pacing back and forth in the room. He was circling the room and appeared to be upset. § 87(2)(b) was raising his voice and swung his arms. PO Feng did not recall if § 87(2)(b) made any physical contact with other officers while swinging his arms but he did not make contact with her. Officers issued commands for § 87(2)(b) to provide his arms to them but he did not listen. PO Feng did not recall who issued these commands to § 87(2)(b) but stated that it was not her. PO Feng did not recall how officers overcame § 87(2)(b)'s resistance. PO Medina, PO Smeraldi, PO Feng, and PO Charles all tried to grab § 87(2)(b)'s arms in order to handcuff him. § 87(2)(b) continued swinging his arms, which prevented the officers from handcuffing him. § 87(2)(b) is a very tall man (§ 87(2)(b) as per his pedigree sheet) and he was taller than any officer who was on scene that day. The officers had § 87(2)(b)'s chest against the wall of the room. It was around this point when § 87(2)(b) came to be on the ground. PO Feng did not know how § 87(2)(b) came to be on the ground or whether this was on purpose or by accident. PO Feng did not know if § 87(2)(b) was resisting in any way besides swinging his arms. After trying to handcuff § 87(2)(b) for less than five minutes, PO Medina took out his Taser and pointed it at § 87(2)(b). PO Feng did not recall where the Taser was pointed to on § 87(2)(b)'s body. PO Medina had his Taser pointed at § 87(2)(b) for less than thirty seconds. PO Medina stated something about using the Taser but PO Feng did not recall what he said. PO Feng did not recall if PO Smeraldi ever told PO Medina not to use the Taser. After PO Medina pointed his Taser at § 87(2)(b) § 87(2)(b) willingly provided his hands and PO Medina holstered his Taser.

PO Charles was consistent with the other officers in that § 87(2)(b) became irate when he was told that he needed to go to the hospital. § 87(2)(b) tried to get past PO Medina and PO Smeraldi and made physical contact with them while trying to leave the room, although PO Charles could not elaborate on this. § 87(2)(b) flailed his arms to evade handcuffs. This was the only way that § 87(2)(b) was resisting. PO Smeraldi and PO Medina then rear cuffed § 87(2)(b). PO Charles did not recall if PO Medina ever drew his Taser or if he ever told § 87(2)(b) that he was going to Tase him.

Patrol Guide Procedure 221-13 states that when officers encounter an emotionally disturbed person they must take them into protective custody and ensure that they receive medical attention

(Board Review 11). Physical force will be used only to the extent necessary to restrain the subject until delivered to the hospital. A member of service may use a Taser to assist in restraining EDPs if necessary. Patrol Guide Procedure 221-08 states that a Taser should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or others. Officers may also issue verbal warnings in conjunction with pointing a Taser at a subject to gain voluntary compliance and prevent the need for force.

Patrol Guide Procedure 221-08 also lists factors that officers should consider to determine if the use of a Taser is appropriate: the nature and severity of the crime/circumstances, actions taken by the subject, duration of the action, immediacy of the perceived threat or harm to the subject and members of service, whether the subject is actively resisting custody, whether the subject is attempting to evade arrest by flight, number of subjects in comparison to the number of members of service, size, age, and condition of the subject in comparison to the members of service, and the subject's violent history, if known, presence of hostile crowd or agitators, and the subject under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence. Additionally, Tasers are generally not to be used against the such groups as children, the elderly, frail, or obviously pregnant.

§ 87(2)(g)

it is recommended that **Allegation A** be closed as **unfounded**.

§ 87(2)(g)

Both PO Medina and PO Smeraldi testified that at the time of PO Medina's threat, § 87(2)(b) was lying on the ground on his stomach and that he was refusing to provide his hands. PO Medina stated that § 87(2)(b) was trying to push officers while he simultaneously had his hands underneath his stomach, § 87(2)(g). Both § 87(2)(b) and § 87(2)(b) stated that § 87(2)(b) never pushed an officer. PO Medina also stated that he and the other officers were trying to handcuff § 87(2)(b) for less than two minutes when he threatened to Tase him; § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations B** and **C** be closed as **substantiated**.

**Allegation D- Abuse of Authority: Police Officer Matthew Medina refused to provide his name to § 87(2)(b)**

**Allegation E- Abuse of Authority: Police Officer Yihong Feng refused to provide her name to § 87(2)(b)**

**Allegation F- Abuse of Authority: Police Officer Ayoela Charles refused to provide her name to § 87(2)(b)**

**Allegation G- Abuse of Authority: Police Officer Blaise Smeraldi refused to provide his name to § 87(2)(b)**

§ 87(2)(b) alleged that after he was handcuffed, he looked at PO Medina and said, “Can I have your names?” He addressed this question to all four officers. None of the officers provided their names or otherwise acknowledged § 87(2)(b)’s question. § 87(2)(b) stated that § 87(2)(b) and § 87(2)(b) were in the room when he asked for the officers’ names.

Neither § 87(2)(b) nor § 87(2)(b) heard § 87(2)(b) ask for any officers’ names at any point.

PO Medina testified that § 87(2)(b) never asked him for his name while in the room. PO Medina never refused to provide his name to § 87(2)(b) PO Medina did not recall if § 87(2)(b) ever asked other officers for their names.

PO Smeraldi did not recall § 87(2)(b) asking for his or any officer’s names. PO Smeraldi did not recall if he provided his name to § 87(2)(b) PO Smeraldi did not refuse to provide his name to § 87(2)(b) at any point and did not hear any officer refuse to provide their name when asked. On May 2, 2018, the undersigned called the Member of Service Wheel and was informed by SPAA Jones that PO Smeraldi resigned from service on April 6, 2018.

PO Feng could not recall when but at some point, § 87(2)(b) asked all of the officers in the room for their names. PO Feng and all of the other officers verbally provided this information. PO Feng then backtracked and stated that she did not recall if § 87(2)(b) ever asked for her name. PO Feng never refused to provide her name when asked. PO Feng was certain that § 87(2)(b) at least asked for PO Smeraldi’s name and that PO Smeraldi spelled his name for § 87(2)(b)

PO Charles stated that § 87(2)(b) did not ask for her name while in the room. PO Charles never refused to provide her name when asked. PO Charles did not recall if § 87(2)(b) asked for any officers’ name while in the room. PO Charles never heard any other officer refuse to provide their name when asked. While in the ambulance, § 87(2)(b) asked for PO Charles’ name and shield number, which she provided.

§ 87(2)(g) it is recommended that **Allegations E, D, and F** be closed as **unsubstantiated**. As PO Smeraldi resigned from service on April 6, 2018, it is recommended that **Allegation G** be closed as **miscellaneous-subject resigned**.

**Allegation H- Abuse of Authority: Sergeant Joel Sanchez forcibly removed § 87(2)(b) to the hospital.**

While § 87(2)(b) requested to go to the hospital § 87(2)(b) he was indisputably unhappy with the police presence that responded to the scene. § 87(2)(b) was then forcibly removed to the hospital.

§ 87(2)(a) PHL § 18(6)

Sgt. Sanchez arrived to § 87(2)(b) after § 87(2)(b) was in handcuffs and the officers were waiting for EMTs to arrive. PO Medina briefed Sgt. Sanchez on the situation; they arrived to the scene in regards to a suicidal male and he resisted being placed in custody.

§ 87(2)(g)

It is therefore recommended that **Allegation H** be closed as **exonerated**.

**Allegation I- Discourtesy- Police Officer Matthew Medina acted discourteously toward**

§ 87(2)(b)

§ 87(2)(b) alleged that while walking down the escalators toward the ambulance, he told PO Medina, who was walking slightly behind him, “You don’t need to be in the damn police force.” PO Medina responded by sticking his middle finger up at § 87(2)(b) § 87(2)(b) did not believe that any other officer saw this gesture because he was the only one facing PO Medina at the time. § 87(2)(b) did not make this allegation in his initial phone statement to the CCRB.

PO Medina testified that while walking § 87(2)(b) to the ambulance, § 87(2)(b) cursed at him and referred to him as a “fat fuck.” PO Medina did not respond to this. PO Medina never stuck his middle finger up at § 87(2)(b)

PO Smeraldi stated that § 87(2)(b) made multiple comments to PO Medina regarding his weight and perceived homosexuality. However, PO Smeraldi, PO Feng, and PO Charles stated that PO Medina never stuck his middle finger up at § 87(2)(b) and that § 87(2)(b) never complained that such an action occurred.

§ 87(2)(g)

It is therefore recommended that **Allegation I** be closed as **unsubstantiated**.

### **Civilian and Officer CCRB Histories**

- This is the first complaint to which § 87(2)(b) has been a party. (Board Review 14).
- PO Matthew Medina has been a member of service for three years and this is the first CCRB complaint in which he has been a subject. § 87(2)(g)
- PO Blaise Smeraldi was appointed to the NYPD on July 13, 2016 and resigned on April 6, 2018. This is the only CCRB complaint in which he has been a subject.
- PO Yihong Feng and PO Ayoela Charles have both been members of service for two years and this is the first CCRB complaint in which they have been subjects.
- Sgt. Joel Sanchez has been a member of service for nine years and this is the first CCRB complaint in which he has been a subject.

### **Mediation, Civil and Criminal Histories**

- § 87(2)(b) declined to mediate this complaint.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming the ramming of a gun into his chest, false arrest, and emotional distress and seeking \$1,000,000 as redress. There is no 50H hearing scheduled (Board Review 15).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

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Squad No.: \_\_\_\_\_

|               |           |                    |       |
|---------------|-----------|--------------------|-------|
| Investigator: | _____     | _____              | _____ |
|               | Signature | Print Title & Name | Date  |
| Squad Leader: | _____     | _____              | _____ |
|               | Signature | Print Title & Name | Date  |
| Reviewer:     | _____     | _____              | _____ |
|               | Signature | Print Title & Name | Date  |